

Cal.App.5th at p. 1054; § 1281.2, subd. (d), 4th par.)

[...]

Since we have concluded that the children's wrongful death claims are not subject to the arbitration agreement, they are clearly third parties for purposes of section 1281.2(c).

(*Maxwell, supra*, 105 Cal.App.5th at 246-247.)

Because defendants here fail to show an arbitration agreement, at least with respect to the wrongful death claims, and because there is thus no delegation clause that would invoke the FAA with respect to those claims, the Court has discretion pursuant to section 1281.2(d) and it declines to enforce the arbitration clause.

Subdivision (c) is concerned with avoiding inconsistent outcomes and duplication of efforts. Here, defendants are parties to an arbitration agreement with Susan in her representative capacity for decedent Kenneth. Accordingly, the agreement might be capable of enforcement with respect to the elder abuse and negligence causes of action, but not with respect to the wrongful death. Defendants do not delve into these nuances, however. Instead the reply ignores the *Maxwell* case and other authority related to wrongful death claims.

The witnesses and evidence that would be presented in any arbitration of the elder abuse cause of action, assuming that arbitration could be compelled with respect to that aspect of the complaint, would very likely overlap with the witnesses and evidence presented at a trial on the wrongful death cause of action. This presents a significant risk of inconsistent findings of fact or conclusions of law.

Based on the *Maxwell* decision, and on the options available to this Court under Code of Civil Procedure, § 1281.2(d), the Court declines to enforce the arbitration agreement.

11. 9:00 AM CASE NUMBER: C25-02454
CASE NAME: SANDRA BELTRAN VS. MILTON HUEZO MARTINEZ
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: HUEZO MARTINEZ, MILTON R.
TENTATIVE RULING:

Defendant Milton Martinez's demurrer to the complaint is **overruled**. Defendant shall file and serve an answer within 10 days after notice of entry of the order.

Plaintiff Sandra Beltran filed this case for (1) quiet title based upon adverse possession and (2) declaratory relief. Plaintiff alleges that she and the Defendant hold title to a property in Richmond as joint tenants. (Comp. ¶13.) The title for the property shows that Plaintiff and Defendant each own 50% in the property as joint tenants pursuant to a grant deed executed on January 10, 2018. (Comp. ¶14.)

For the quiet title claim, Plaintiff is seeking 100% ownership of the property based upon adverse possession. Plaintiff alleges that since February 2018, she has "solely possessed, maintained, and invested substantially" in the property by paying the mortgage and property taxes, as well as capital improvements. (Comp. ¶18.) Plaintiff alleges she "has been in continuous possession during the

5-year period described in the preceding paragraphs, adverse to defendants and to all other persons, and notified defendants of the same". (Comp. ¶14.) Plaintiff alleges that her use has been "actual, open, hostile, continuous and exclusive possession under a claim of right founded upon a written instrument (i.e. the above-described Deed) and by way of improvement to the property". (Comp. ¶12.) For the declaratory relief claim, Plaintiff seeks a judicial declaration as the rights of the parties to the property. (Comp. ¶19.)

Defendant demurs to both causes of action based upon the failure to state facts sufficient to state a cause of action and on uncertainty. (Code of Civil Procedure section 430.10(e), (f).)

As to the quiet title claim, Defendant argues that it is uncertain because it combines two distinct causes of action: quiet title and adverse possession. A claim for quiet title based upon adverse possession is permitted. Code of Civil Procedure section 761.020 states what should be included in a quiet title complaint. Subsection (b) states in part that "[i]f the title is based upon adverse possession, the complaint shall allege the specific facts constituting the adverse possession." (Code of Civil Procedure section 761.020(b); see also, *Dimmick v. Dimmick* (1962) 58 Cal.2d 417, 421.)

Defendant also argues that the parties are joint tenants and thus, Plaintiff's use was not hostile to Defendant's ownership. "The exclusive occupancy by a cotenant is deemed permissive; it does not become adverse until the tenant out of possession has had either actual or constructive notice that the possession of the cotenant is hostile to him." (*Dimmick, supra*, 58 Cal.2d at 422.) "Before title may be acquired by adverse possession as between cotenants, the occupying tenant must bring home or impart notice to the tenant out of possession, by acts of ownership of the most open, notorious and unequivocal character, that he intends to oust the latter of his interest in the common property. [Citations.] Such evidence must be stronger than that which would be required to establish a title by adverse possession in a stranger. [Citations.]" (*Hunter v. Schultz* (1966) 240 Cal.App.2d 24, 28.)

Here, Plaintiff has alleged that she "has been in continuous possession during the 5-year period described in the preceding paragraphs, adverse to defendants and to all other persons, *and notified defendants of the same*". (Comp. ¶14 (emphasis added).) The Court finds that these allegations are sufficient to allege that Plaintiff notified Defendant of her hostile use of the property such that an adverse possession claim could be viable. The demurrer to the quiet title claim is overruled.

As to the declaratory relief claim, Defendant argues that the claim is duplicative of the quiet title claim. Plaintiff argues that the declaratory relief claim is distinct from the quiet title claim. The Court agrees that the declaratory relief claim could provide relief beyond what is sought in the quiet title claim. The demurrer to the declaratory relief claim is overruled.

12. 9:00 AM CASE NUMBER: C25-02669
CASE NAME: CORINNE REES VS. SAMIR ROHAYEM
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: ROHAYEM, SAMIR